



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 11370 of 2026

Parvati Devi

.....Petitioner(s)

Versus

Purvanchal Vidhut Vitranan Nigam And Another

.....Respondent(s)

Counsel for Petitioner(s)	: Arun Mishra, Vijay Pratap Singh, Vishnu Pratap Pandey
Counsel for Respondent(s)	: Narendra Kumar Tiwari

Court No. - 29

**HON'BLE ARINDAM SINHA, J.
HON'BLE DEVENDRA SINGH-I, J.**

1. Mr. Arun Mishra, learned advocate appears on behalf of petitioner and submits, prayer of his client is for issuance of mandamus to command respondent no.2 (the Executive Engineer) to generate one bill from inception of connection on the basis of final reading of 4468KWH units without adding fixed charge after line temporarily disconnected under clause 4.37(a) in Uttar Pradesh Electricity Supply Code, 2005 and without surcharge. Drawing attention to clause 4.37(a) he submits, the provision mandates the licensee to bill a consumer on minimum charges after a connection is temporarily disconnected. The licensee is to thereafter move for permanent disconnection.

2. Mr. Rakesh Kumar Mishra, learned advocate holding the brief appears on behalf of respondents (the supply company). He draws attention to order dated 12th December, 2025 made by co-ordinate Bench in petitioner's own case (Writ C no.- 43924 of 2025). Pursuant to said order, petitioner made representation and the bill dated 20th February, 2026 was generated. He points out from the bill, there is deduction. Petitioner's grievance was taken care of.

3. Mr. Arun Mishra in reply demonstrates from the bill, there is amount of Rs. 2,24,241.30/- as late payment surcharge. Referring to clause 6.5(b)(i) he submits, clear provision is for no payment on late payment surcharge when a bill is revised upon consumer's complaint found to be correct.

- 4. The supply company has adjournment to issue instructions.
- 5. List for disposal on 1st April, 2026 as fresh.

(Arindam Sinha,J.)

(Devendra Singh-I,J.)

March 25, 2026
Mohini